

25VECV05747 25VECV05747

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-28

Motion: MOTION TO BE RELIEVED AS COUNSEL

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Case Number: 25VECV05747 Hearing Date: August 28, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JOANNA CRUZ,

Plaintiff,

vs.

CITY OF LOS ANGELES, COUNTY OF

LOS ANGELES, AND DOES 1 TO 25,

INCLUSIVE,

Defendants.

CASE NO: 25VECV05747

[TENTATIVE]

ORDER RE:

MOTION

TO BE RELIEVED AS COUNSEL

Dept. W

8:30 a.m.

August 28, 2026

[TENTATIVE] ORDER: The Court GRANTS the Law Offices of Sharona Eslamboly Hakim and Sharona Eslamboly Hakim, Esq.'s Motion to be Relieved as Counsel.

Background

This is a city sidewalk slip and fall case. Plaintiff Joanna Cruz alleges that on September 16, 2024, she was seriously injured when she tripped and fell on the sidewalk, maintained by Defendants The City of Los Angeles, and The County of Los Angeles.

On October 8, 2025, Plaintiff brought suit against Defendants alleging general negligence and premises liability.

Now, Plaintiff's representative, the Law Offices of Sharona Eslamboly Hakim and Sharona Eslamboly Hakim, Esq. (herein "counsel"), moves to be relieved as Plaintiff's counsel.

Discussion

Counsel moves to be relieved as Plaintiff's counsel.

The requirements for a Motion to be Relieved as Counsel are outlined in CRC 3.1362. Moving counsel must: (1) submit form MC-051 - notice of the motion to the client, (2) submit form MC-052 - a declaration explaining why they could not acquire client's consent to withdraw, (3) submit form MC-053 – a copy of the proposed order, and (4) serve these documents and notice of the motion to both the client and all other parties in the case. (Cal. Rules of Court, rule 3.1362(a)-(e).) Additionally, relief cannot be granted if it is reasonably foreseeable that the client would suffer prejudice as a result of the withdrawal. (Mossanen v. Monfared (2000) 77 Cal.App.4th

1402, 1409.)

First, counsel has submitted Form MC-051 and has served Plaintiff with notice of this motion. (Motion to be Relieved, MC-051.) Second, counsel has submitted Form MC-052, stating that: "Plaintiff's counsel is unable to communicate with client such that Plaintiff's counsel can no longer represent the plaintiff. Plaintiff has not responded to letters sent and all numbers and back up numbers are disconnected." (Declaration in Support, ¶ 2.) Third, counsel submitted a copy of the proposed order via Form MC-053. (Proposed Order, MC-053.) Fourth, counsel served these documents onto all parties in this case. (MC-051, Proof of Service, 7/9/26.) Thus, counsel has met all the procedural requirements under CRC 3.1362.

Finally, the Court must determine whether it is reasonably foreseeable that the client will suffer prejudice as a result of this withdrawal. Here, there are no motions scheduled in this case. The most imminent hearing is a post-mediation status conference scheduled for October 5, 2027. Thus, is it not reasonably foreseeable that Plaintiff could be prejudiced by this withdrawal.

For these reasons, the Court GRANTS counsel's Motion to be Relieved as Counsel.

Conclusion

The Court GRANTS the Law Offices of Sharona Eslamboly Hakim and Sharona Eslamboly Hakim, Esq.'s Motion to be Relieved as Counsel.

IT
IS SO ORDERED, Plaintiff
TO GIVE NOTICE.

August 28, 2026

Judge of the Superior Court